

फार्म नं. 1

प्रथम सूचना प्रतिवेदन (धारा 154 द. प्रक्रिया संहिता के अन्तर्गत)
FIRST INFORMATION REPORT (Under Sec. 154 Cr.P.C.)

वि.पु.सं.सौ.-II
S.P.E.C.-II

बुक नं.
Book No

1446

क्रम सं.
Serial No. 003

1. जिला : थाना : वर्ष : प्र.सू.प्र.क्र. दिनांक :
District PS: Year FIR No. Date
New Delhi CBI/AC-I 2024 RC 216 2024 A 0011 16.11.2024

2. (1) विधान : BNS 2023 धाराएं : 61(2) of BNS - 2023
Act Sections

(2) विधान : PC Act, 1988 धाराएं : 7, 8, 9, 10 & 12
(as amended in 2018) Act Sections

(3) विधान : धाराएं :
Act Sections

(4) अन्य विधान एवं धाराएं :
Other Acts & Sections

3. (क) प्रतीत अपराध :
(a) Suspected Offence

Criminal Conspiracy, obtaining of bribe by public servant, obtaining, Bribing a public servant by private persons, and commercial organization & officers and abetment of offences under PC Act 1988 (as amended in 2018).

(ख) दिन : दिनांक समय
(b) Day Date Time
16.11.2024

(ग) थाने पर सूचना प्राप्त होने का दिनांक
(c) Information received at PS Date
CBI, AC-I, New Delhi 16.11.2024

कायमी अपराध : दिनांक समय
Entry No. 04 Date Time
16.11.2024 07:00 Hrs.

4. सूचना का प्रकार : लिखित/मौखिक
Type of Information Written/Oral
Oral Information

5. घटना का स्थान : Mumbai, Visakhapatnam and other places.
Place of Occurrence

(क) थाने से दिशा व दूरी :
(a) Direction & Distance from PS

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बीट नं. / Beat No

(ख) पता:

(b) Address

N.A.

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना -

(c) In case, outside the limit of this Police Station, then

N.A.

पुलिस थाना का नाम

Name of PS

N.A.

जिला

District

N.A.

6. अभियोगी / सूचनाकर्ता :
Complainant / Informant

Source Information

(क) नाम

(a) Name

(ख) पिता / पति का नाम

(b) Father's / Husband's Name

(ग) जन्म तिथि

(c) Date of Birth

(घ) राष्ट्रीयता:

(d) Nationality

(ङ) पासपोर्ट नं. जारी दिनांक जारी होने का स्थान

(e) Passport No

Date of Issue

Place of Issue

(च) व्यवसाय

(f) Profession

(छ) पता -

(g) Address

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण:

Details of known / suspected / unknown accused with full particulars

(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)

(Attached separate sheet, if necessary)

List of accused as per annexure-A

(1)

(2)

(3)


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Annexure-'A'

1. **Shri Saurabh Prasad**, Divisional Railway Manager, Waltair (Vizag) Division, East Coast Railway, Visakhapatnam
2. **Shri Sanil Rathod**, proprietor, M/s DN Marketing, 1406-R, 14th Floor, Navjivan Commercial Complex, Lamington Road, D.B. Marg, Mumbai. R/o (1) 1802, 18th Floor, C Wing, World View, Lodha Tower, Mumbai (2) Navjivan Society, 6th Floor, Building No. 8-B, Flat No. 24, Lamington Road, Mumbai.
3. **Shri Anand Bhagat**, Director, M/s HRK Solutions Pvt Ltd., Pune and also proprietor, M/s HRK Enterprises, Pune, R/o Lumbini Nagar, Lane No 2, Private Road, Pune City, Near Le Meridien Hotel, Pune, (Pune)
4. **M/s HRK Solutions Pvt Ltd. (Pune)**, Office No. 103, Sadhu Waswani Chowk Parmar Chamber, Camp, Pune.
5. **M/s Hindustan Fibre Glass Works Ltd.**, C1B - 231/3&4 GIDC Industrial Estate, Por Ramangamdi, Distt.: Vadodara- 391243, Gujarat, India.
6. Unknown private persons and public servants.


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8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant / informant

No Delay.

9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)

N.A.

10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य :
Total value of property stolen

N.A.

11. मर्ग / अकाल मृत्यु सूचना क्रमांक :
Inquest Report / U. D. case No. if any

N.A.

12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

As per Annexure "B" attached herewith.



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Information

A reliable information has been received to the effect that **Shri Saurabh Prasad**, Divisional Railway Manager, Waltair (Vizag) Division, East Coast Railway, Visakhapatnam in connivance with **Shri Sanil Rathod**, proprietor, M/s DN Marketing, 1406-R, 14th Floor, Navjivan Commercial Complex, Lamington Road, D.B. Marg, Mumbai; R/o (P1) 1802, 18th Floor, C Wing, World View, Lodha Tower, Mumbai and also (2) Navjivan Society, 6th Floor, Building No. 8-B, Flat No. 24, Lamington Road, Mumbai, Maharashtra and **Shri Anand Bhagat**, Director, M/s HRK Solutions Pvt Ltd., Pune and also proprietor, M/s HRK Enterprises, Pune, r/o Lumbini Nagar, Lane No 2, Private Road, Pune City, Near Le Meridien Hotel, Pune, (Pune) and other unknown persons, is indulging in corrupt and illegal activities and demanding and obtaining illegal gratification in lieu of favours shown to said parties in clearance of their pending bills for payment and other pending works.

Source has revealed that M/s DN Marketing (Mumbai) and **M/s HRK Solutions Pvt Ltd. (Pune)**, Office No. 103, Sadhu Waswani Chowk Parmar Chamber, Camp Pune are executing a project for Indian Railways under the jurisdiction of Waltair (Vizag) Division of East Coast Railway, involving heavy repairs, renovation and refurbishment of wagons. The said work is being carried out by the said M/s DN Marketing (Mumbai) and M/s HRK Solutions Pvt Ltd. (Pune) on behalf of M/s Hindustan Fibre Glass Works Pvt. Ltd., Vadodara, who were awarded the work by way of a railway contract.

Source has further revealed that Shri Sanil Rathod and Shri Anand Bhagat are liaising with public servants of the Waltair Division, East Coast Railway including Shri Saurabh Prasad to expedite clearance of bills in lieu of illegal gratifications. The source further informed that a bill of **M/s Hindustan Fibre Glass Works Pvt. Ltd.**, C1B - 231/3&4 GIDC Industrial Estate, Por Ramangamdi, Distt.: Vadodara- 391243, Gujarat amounting to Rs. 3.17 crores was pending with the East Coast Railway, Visakhapatnam; with Shri Santosh Patro, Sr. Divisional Mechanical Engineer. Because of considerable delay in execution of the work, hefty penalty was imposed on the contractor. The source has informed that **Shri Shankar Patel**, Director, M/s Hindustan Fibre Glass Works Pvt. Ltd. repeatedly urged Shri Sanil Rathod and Shri Anand Bhagat to get the bill cleared as soon as possible. On 04.07.2024, Shri Anand Bhagat told Shri Sanil Rathod that it is



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absolutely necessary for them to meet the DRM of Vizag for reduction of the proposed penalty in lieu of illegal gratification of Rs. 25 lacs, which would be delivered to Shri Saurabh Prasad before August 15, after clearance of the bill.

The source has further revealed that subsequently Shri Anand Bhagat informed Shri Sanil Rathod that he met Mr. Saurabh Prasad in person at the latter's office in Vizag on 09.09.2024, with a request to get the penalty lowered and get the pending bill cleared, and assured Shri Saurabh Prasad that he would pay him illegal gratification in lieu of the said favour. Shri Anand Bhagat informed Shri Sanil Rathod that Shri Saurabh Prasad contacted the Sr. DME in his presence and impressed upon him that the bill has to be cleared on priority. Shri Sanil Rathod and Anand Bhagat also discussed that Shri Saurabh Prasad agreed that the money will be delivered in Mumbai, to him or to his spouse Ms. Manjushree Prasad.

The source has further informed that pursuant to intervention of Shri Saurabh Prasad, the pending bill of M/s Hindustan Fibre Glass Works Pvt. Ltd. was finally cleared for payment in late October 2024, and the final penalty levied was much lower than what was initially assessed by the Railway authorities. On 10.11.2024, Shri Sanil Rathod informed Shri Anand Bhagat that DRM Saurabh Prasad had called him to say that he would be visiting Mumbai on 15.11.2024. Thereafter, Shri Sanil Rathod and Shri Anand Bhagat decided to deliver the bribe amount of Rs.25 lacs to Mr Saurabh Prasad.

The source has further informed that Shri Saurabh Prasad, Divisional Railway Manager, Waltair Division, East Coast Railway arrived at Mumbai in the evening of 15.11.2024. Shri Sanil Rathod informed Shri Anand Bhagat that Shri Saurabh Prasad has agreed to meet them at the Pizza-By-The-Bay Restaurant on 16.11.2024 and to further decide the place and time of delivery of the bribe amount. The source has informed that Shri Sanil Rathod is likely to deliver the bribe amount to Shri Saurabh Prasad on 16.11.2024.

The aforesaid information discloses commission of cognizable offence(s) U/s 61(2) of BNS 2023 r/w Sections 7, 8, 9, 10 & 12 of PC Act 1988 (As amended in 2018) and substantive offences thereof by the said (1) Shri Saurabh Prasad, Divisional Railway Manager, Waltair Division, East Coast Railway, Visakhapatnam; (2) Shri Sanil Rathod, proprietor, M/s DN Marketing, Mumbai; (3) Shri Anand Bhagat, Director, M/s HRK


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Solutions Pvt Ltd., (4) M/s HRK Solutions Pvt Ltd. (5) M/s Hindustan Fibre Glass Works Pvt. Ltd., Gujarat and other unknown private persons and public servants. A regular Case is, therefore, registered and entrusted to Shri Bhanvrendra Choudhary, Inspector, CBI, AC-I for investigation.

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13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा (ओ) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है।

Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item no. 2

- (1) मामला पंजीकृत किया गया एवं जांच प्रारम्भ हुआ अथवा
Registered the case and took up the investigation or
Regular Case is registered

- (2) निर्देशित (जांच अधिकारी का नाम)
Directed (Name of IO)

रैंक

Rank

नं.

No.

जांच हेतु लिया गया
Took up for
investigation

Shri Bhanvrendra Choudhary

Inspector

CBI, AC-I, New Delhi Yes

- (3) कारण से जांच के नामंजूर
Refused investigation due to

NA

अथवा
or

- (4) पुलिस थाना को स्थानांतरित किया गया
Transferred to PS

जिला

District

क्षेत्राधिकार के आधार पर
on point of jurisdiction

NA

अभियोगी / सूचनाकर्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वाकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।

R. O. A. C.

14. अभियोगी / सूचनाकर्ता के हस्ताक्षर
Signature / Thumb impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर

Signature of Officer in-charge
Police Station

नाम / Name

(पद) / Rank

(Suman Kumar)
Supdt. of Police
CBI, AC-I New Delhi

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the court

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(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण :-

Physical features, deformities and other details of the suspect/accused : (If known / seen)

क्र.सं. Sl. No.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date / year of Birth	*शारीरिक गठन (Built)	*ऊंचाई से. मी. में (Height) (in Cms)	*वर्ण (Complexion)	*पहचान चिह्न (Identification Mark/s)
1	2	3	4	5	6	7

विरूपता/विलक्षणता (Deformities peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress habit/s)
8	9	10	11	12	13

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जख्म चिह्न (Scar)	गोदना (Tattoo)
14	15	16	17	18	19

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.